

25LBCV00559 25LBCV00559

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-08-14

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Case Number: 25LBCV00559 Hearing Date: August 14, 2026 Dept: S25

Motion: Defendant Caruso Ford Lincoln's Demurrer to and Motion to Strike Portions of the First Amended Complaint

Moving Party: Defendant Caruso Ford Lincoln ("Defendant")

Responding Parties: Plaintiffs Reginald Ramos and Lorna Ramos ("Plaintiffs")

Background

On May 8, 2026, Defendant Caruso Ford Lincoln's filed this Demurrer to and Motion to Strike Portions of the First Amended Complaint.

As of August 13, 2026, NO OPPOSITION has been received.

Meet and Confer

The requirements are satisfied. (Park Decl., ¶¶ 5-9, Exs. B-C; Code Civ. Proc., § 430.41, subd. (a)(2); Code Civ. Proc., § 435.5, subd. (a)(2).)

Demurrer Analysis

Whether Song-Beverly Manufacturer Obligations Fall on Defendant

The Court finds that Song-Beverly Manufacturer obligations do not fall on Defendant. (Civ. Code, § 1793.2.) The fourth cause of action for breach of implied warranty of merchantability also does not apply to Defendant because there is no allegation that Defendant sold the Subject Vehicle and there is no allegation that the Subject Vehicle was sold as a used vehicle. (Civ. Code, § 1795.5; FAC.)

As for the first to fourth as well as sixth causes of action, the Court notes that only Defendant Ford Motor Company is referenced and not Defendant. As for the sixth cause of action, it is not clear whether the claim is brought against Defendant as well.

The demurrer is SUSTAINED without leave to amend as to the first to fourth causes of action and as to the sixth causes of action due to uncertainty. Without an opposition, Plaintiff hasn't demonstrated that there is any reasonable possibility that the defect can be cured.

Fifth Cause of Action for Negligent Repair

The necessary elements for negligence are: (1) the existence of a legal duty of care that the defendant owed to the plaintiff; (2) breach; (3) causation; and (4) damages. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

The Court finds that the economic loss rule bars Plaintiff's negligent repair claim. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 38.) Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) Because it appears there is no reasonable possibility of successfully amending this cause of action, no leave to amend is given.

Summary of Motion to Strike

Defendant seeks to strike Plaintiffs' claim for punitive damages.

Motion to Strike Analysis

The instant motion is MOOT as the Court sustained the sixth cause of action with leave to amend.

Tentative Ruling

Defendant Caruso Ford Lincoln's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend. The instant motion to strike is MOOT.